

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-010
Amendments to Title 2, Chapter 4, Article B, Section 2-425
of the Chickasaw Nation Code
(Judicial Department Salaries)

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 11 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2007.

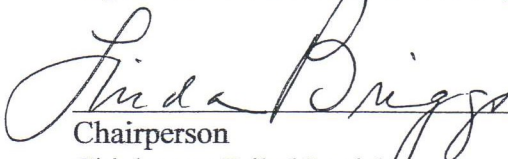
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Section 2-245 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2007:

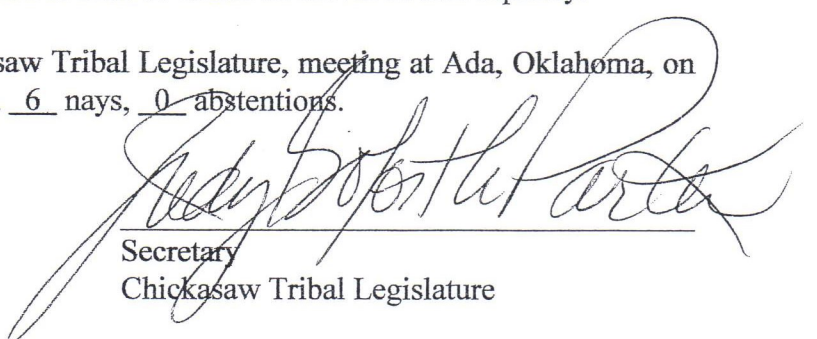
“SECTION 2-425

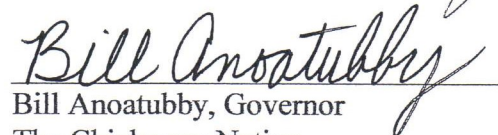
JUDICIAL DEPARTMENT SALARIES.

The salary of each Justice of the Supreme Court shall be the sum of three thousand dollars (\$3,000) per month, plus a ~~three and one half percent (3.5%)~~ five percent (5%) increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to twenty five percent (25%) of each Justice's total annual salary to a retirement/investment plan, as directed by the Justice. The Justice that is elected to serve as Chief Justice shall receive an additional \$100.00 per month for the duration of time in which he serves in that capacity.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 21, 2007, by a vote of 7 ayes, 6 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 21 2007

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-010
Amendments to Title 2, Chapter 4, Article B, Section 2-425
of the Chickasaw Nation Code
(Judicial Department Salaries)

Explanation: The Chickasaw Constitution, Article VII, Section 11, as amended by Amendment IV dated September 27, 1990, provides that the Tribal Legislature shall review salaries and allowances pertaining to the elected officials of the Chickasaw Nation every fourth year. September, 2007, represents the last month of the fourth year of the cycle established in 1983.

This resolution amends that part of Title 2, Chapter 4, Article B, Section 2-425 pertaining to the longevity pay of Supreme Court Justices. This resolution increases such longevity pay from 3.5% increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983, to 5% increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983. For examples, a Supreme Court Justice in his first year of office would be paid the monthly base salary (\$3,000) plus 25% of that salary (\$750) to be paid into to a retirement/investment plan; a Supreme Court Justice in his second year of office would be paid the monthly base salary plus 5% (\$3,150) plus 25% of that salary (\$787.50) to be paid into to a retirement/investment plan.

Presented By: Legislative Committee
Steve Woods, Committee Chair